TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MARCH 25, 2024
MINUTES

STAFF REPORT

Present: Megan Stevens, Vice-chair, Giles Branch, Aaron Butner, Molly Hall, Julian Hopkins.
Absent: Elliott Barrow, Stephen Wood.
Staff: Chris Swalhah, James Ward, Lynnette Lynes

Ms. Stevens called the meeting to order at 6:00 pm.

A. Approval of Agenda

Mr. Hopkins moved for approval of the agenda. Mr. Butner seconded the motion. All in favor.

B. Approval of Minutes

Mr. Butner moved for approval of the minutes. Mr. Hopkins seconded the motion. All in favor.

C. Public Comment
D. General Correspondence

There being no general correspondence or comments, Ms. Stevens continued with the agenda.

E. Explanation of Procedures
F. Administration of Oath

Ms. Stevens reviewed the procedures with the public and administered the oath to those speaking.

G. Business

1. **Case V-16-24, 384 Evian Way, TMS# 537-08-00-119. Request for relief from §156.111(A)(5) to allow an accessory structure to exceed the maximum height requirement by 1-foot 4 and ½ inches. The ordinance**

limits the height of accessory structures to 15-feet from grade for this parcel. RELATED CORRESPONDENCE

- Mr. Swalhah reviewed staff comments with the Board.

- Ms. Jody Crosby, applicant, reviewed the request with the Board.

- Mr. Christopher Click, contractor for the applicant, stated that this process began in 2020. He stated that the owners have worked with staff to try to have a structure that meets the requirements of the lot. He suggested that the easement and slope of the property needed for proper drainage hinders the construction of the structure.

- There being no further comments, Ms. Stevens moved to rebuttal and moved to Board questions.

- Ms. Stevens closed public comment.

- *Mr. Branch moved for approval based on the findings that there are extraordinary conditions, as the property is unique in size and shape and due to the number of trees on property and the drainage easement; it is different from other properties; the use is unreasonably restricted as a stem wall is needed due to the drainage easement, 15 ft height is not unreasonable; and there is no detriment as neighbors have submitted letters stating that they are in favor. Mr. Butner seconded the motion. All in favor.*

2. **Case V-17-24, 751 Navigators Run, TMS# 535-07-00-060. Request for relief from the strict application of §156.111(D)(1), 156.111(D)(3), and §156.303(Table) to allow an enclosed walkway to be constructed between the principal dwelling and detached garage. RELATED CORRESPONDENCE**

- Mr. Swalhah reviewed staff comments with the Board.

- Mr. Justin Ferrick, Beau Clowney Architects, reviewed the request with the Board.

- There being no comments, Ms. Stevens moved to Board comments.

- Mr. Ferrick rebutted that the variances would help to "clean up" the property and uses.

There being no further comments, Ms. Stevens closed public comment.

- *Mr. Branch moved for approval based on the findings that there are extraordinary conditions as it was permitted in 2003 to allow structure and walkway to be constructed; the conditions do not apply to other properties as this property has dual frontage; denial would unreasonably restrict utilization of the property as there is no way to add conditioned space and there is a right to be able to utilize the property; and there is no detriment to neighbors. Mr. Hopkins seconded the motion. All in favor.*

There being no further business, the meeting adjourned at 6:51 pm.

Submitted by,
L. Lynes
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